



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

June 22, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 11262
(THIRTEENTH REVISION)

EXPIRATION DATE: 2027-05-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Caire Inc.
Ball Ground, GA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the manufacture, mark, sale, and use of a non-DOT specification cylinder conforming with all regulations applicable to a DOT specification 4L cylinder, except as specified herein, for the transportation in commerce of the materials authorized by this special permit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of another device, or other uses not associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a) party status may not be granted to a manufacturing permit. These packaging may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.316(c)(2) in that non-DOT specification packaging is not authorized, except as specified herein.

5. BASIS: This special permit is based on the application of Caire Inc. dated October 28, 2023, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Oxygen, Refrigerated liquid (<i>cryogenic liquid</i>)	2.2	UN1073	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Prescribed packaging is a vacuum-insulated, non-DOT specification cylinder conforming to Caire Inc.'s models Stroller GEN III-1.2 L, Sprint GEN III-0.6 L and Spirit 300. The liquid oxygen supply systems must conform with drawings and reports on file with the Office of Hazardous Materials Safety, (OHMS) and with the requirements for DOT-4L specification (§ 178.57) except as follows:

(1) § 178.57(d)(3): Applies except the sixth sentence is deleted and the fifth sentence is replaced by the following:

(i) For the Stroller and Sprint models: "The construction of the container and vacuum insulation must be such that the total heat transfer from the atmosphere at ambient temperature to the cylinder lading will not exceed 0.010 BTU per hour, per Fahrenheit degree differential in temperature, per pound of water capacity of the cylinder."

(ii) For the Spirit model: "The construction of the container and vacuum insulation must be such that the total heat transfer from the atmosphere at ambient temperature to the cylinder lading will not exceed 0.0158 BTU per hour, per Fahrenheit degree differential in temperature, per pound of water capacity of the cylinder."

(2) The pressure relief device shall be in direct contact with the vapor phase at all times.

(3) § 178.57(p): Marking applies except each cylinder must be marked with "DOT-SP 11262" instead of "DOT 4L".

8. SPECIAL PROVISIONS:

- a. In accordance with the provisions of paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.
- b. A person who is not a holder of this special permit, but receives a packaging covered by this special permit, may reoffer it for transportation provided no modification or change is made to the packaging and it is offered for transportation in conformance with this special permit and the HMR.
- c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- d. Each packaging manufactured under the authority of this special permit must be marked with a registration symbol designated by the Office of Hazardous Materials Special Permits and Approvals for a specific manufacturing facility.
- e. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: No modal-specific requirements are required by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

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